

Ayub v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 7 August 2014 · Writ-C No. 40978 of 2014 · **Writ disposed of; petitioner relegated to a Clause 6.14 instalment representation.**

HEADNOTE

A consumer challenging a recovery citation for electricity dues, and offering to pay in instalments, was relegated to the officers who under Clause 6.14 of the U.P. Electricity Supply Code, 2005 may grant instalment facility in financial distress. The writ was disposed of with liberty to represent within four weeks; the authority was to decide in accordance with law, preferably within one month.

FACTUAL SUMMARY

Ayub challenged a citation dated 13 June 2013 issued by the electricity corporation for recovery of Rs.76,624 towards consumption of electrical energy. He offered to deposit the entire amount in instalments. Counsel for the corporation pointed out that Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer, D.G.M. and General Manager to extend instalment facility to consumers in financial distress, and that the petitioner could approach those authorities with a representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for consumers in financial distress

HOLDING

Where a consumer facing recovery of electricity dues offers to pay in instalments, the writ court will not itself grant instalments but will relegate the consumer to the Executive Engineer, D.G.M. or General Manager, who under Clause 6.14 of the U.P. Electricity Supply Code, 2005 are empowered to extend instalment facility to consumers in financial distress; any representation so made is to be decided in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AND ENTITLEMENT TO INSTALMENTS ON THE MERITS

Left to the competent Clause 6.14 authority to decide in accordance with law. ¶ 1